

SOTOMAYOR, J., dissenting

States from Jamaica when he was about 10 years old. They both entered legally and, through Barton's stepfather, soon adjusted their status to LPRs. When Barton was placed in removal proceedings, all of his immediate family—his mother, his children, his fiancée—were living in the United States. He had not returned to Jamaica in 25 years.

Barton was first arrested in 1996, when he was 17 or 18, after a friend shot at his ex-girlfriend's house while he was present. Both he and his friend were convicted of, among other things, aggravated assault and possession of a firearm. Barton later testified before an immigration judge that he was unaware that his friend had a gun or was planning to shoot it.

After attending a boot camp and obtaining his GED, Barton led a law-abiding life for several years. But in the mid-2000s, Barton developed a drug problem and was convicted twice on possession charges. After attending two drug rehabilitation programs, Barton was never arrested again. He graduated from college, began running an automobile repair shop, and became a father to four young children.

Just a few years ago—nearly 10 years after his last arrest—the Government detained Barton and placed him in removal proceedings. Because he had been lawfully admitted to the country, the Government could not charge him with any grounds of inadmissibility. Rather, the Government charged, and Barton conceded, that he was deportable based on prior firearms and drug convictions. (All agree that Barton's aggravated-assault offense did not qualify as a deportable offense under §1227.) Barton then sought cancellation of removal.

Perhaps recognizing that Barton had a strong case for cancellation of removal on the merits, see *C-V-T*, 22 I. & N. Dec., at 11 (factors such as “family ties within the United States, residence of long duration in this country (particularly when the inception of residence occurred at a young

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age),” and “business ties” all favor a noncitizen seeking cancellation), the Government contended that Barton was categorically ineligible for that relief. It reasoned that Barton’s prior offenses triggered the stop-time rule and that Barton therefore could not meet the continuous-residence requirement.

The problem (for the Government) was finding a prior offense that actually triggered the stop-time rule. None of the offenses that had made Barton deportable—his firearms and drug convictions—satisfied the stop-time rule’s first clause because §1182(a)(2) does not “refe[r] to” those offenses. The Government therefore could not argue that Barton’s firearms and drug offenses ended Barton’s period of continuous residence under the stop-time rule. As for Barton’s aggravated-assault offense, it was not a ground for deportability under §1227(a) and therefore did not render him deportable under the third clause of the stop-time rule.

So the Government took a different tack: It argued that, even though Barton had already been admitted (and was not seeking readmission), his aggravated-assault offense “render[ed him] inadmissible” under the second clause of the stop-time rule. That is, although the Government could not charge Barton with inadmissibility, it relied upon a ground of inadmissibility to assert that Barton was not entitled to relief from removal.

The Immigration Judge agreed with the Government. The judge made clear, however, that she would have granted Barton’s cancellation application had he satisfied the continuous-residence requirement. The judge cited, among other things, Barton’s strong family ties, including his four young children who were all U. S. citizens. The judge concluded that because “his last arrest was over 10 years ago,” Barton “is clearly rehabilitated.” The judge also concluded that Barton’s family “relies on him and would suffer hardship if he were to be deported to Jamaica.” App. to Pet. for Cert. 36a.

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II

Barton makes two arguments to this Court. The Court focuses on the first—that the stop-time rule will “rende[r]” a noncitizen inadmissible only if the person is actually adjudicated inadmissible based on the given offense. But whether Barton is right on that score is irrelevant because Barton’s second argument—which the Court fails to grapple with meaningfully—is surely correct: At the very least, an offense cannot “rende[r]” someone inadmissible unless the Government can legally charge that noncitizen with a ground of inadmissibility. That is, the stop-time rule is consistent with basic immigration law: A noncitizen who has already been admitted, and is not seeking readmission, cannot be charged with any ground of inadmissibility and thus cannot be deemed inadmissible.

Because the stop-time rule uses the terms “removable” (*i. e.*, deportable) and “inadmissible” in the disjunctive, the Court must analyze the rule against the INA’s historic two-track backdrop. That context confirms that the term “inadmissible” cannot refer to a noncitizen who, like Barton, has already been admitted and is not seeking readmission. Indeed, the terms “inadmissible” and “deportable” are mutually exclusive in removal proceedings: A noncitizen can be deemed either inadmissible or deportable, not both. § 1229a(e) (for the purposes of removal statute and § 1229b—governing cancellation of removal—a noncitizen is “inadmissible under section 1182” if “not admitted to the United States,” and “deportable under section 1227” if “admitted to the United States”). For the purposes of the stop-time rule, a person is not “inadmissible” unless that person actually seeks admission, and thus is subject to charges of inadmissibility.

After all, if the provision applied to those who could hypothetically be rendered inadmissible, it could have said so. For example, the statute would have said that it applied when “the alien has committed an offense referred to in

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section 1182(a)(2) of this title” that either (2) “*could render* the alien inadmissible to the United States under section 1182(a)(2) of this title” or (3) *could render* the noncitizen “removable [*i. e.*, deportable] from the United States under section 1227(a)(2) or 1227(a)(4) of this title.”²

The Government’s reading—that a noncitizen can be inadmissible under the stop-time rule without seeking admission at all—flouts basic statutory-interpretation principles. Among “the most basic interpretive canons” is “that a statute should be construed so that effect is given to all its provisions, so that no part will be inoperative or superfluous, void or insignificant.” *Corley v. United States*, 556 U. S. 303, 314 (2009) (internal quotation marks and alteration omitted). Were the stop-time rule agnostic to whether the noncitizen actually seeks admission, then the rule’s third clause—regarding deportability—would be meaningless. When a noncitizen is “removable”—*i. e.*, deportable—under § 1227 for an offense “referred to” in § 1182(a)(2), he or she is also “inadmissible” for an offense “referred to” in § 1182(a)(2). The third clause has meaning only if inadmissibility and deportability apply, as they always have, to separate groups of noncitizens—noncitizens seeking admission on the one hand, and noncitizens already admitted on the other.

To be sure, there are limited exceptions to the general rule that questions of admissibility apply only to noncitizens

²The Court seems to suggest that the stop-time rule’s tense simply mirrors § 1182(a)(2). See *ante*, at 236. It is true that § 1182(a)(2) speaks in the present tense, stating that a noncitizen “is inadmissible” if she has been “convicted of” or “admits having committed” certain offenses. § 1182(a)(2)(A)(i). But the Court’s argument does not follow. Section 1182, by its terms, applies only to “[c]lasses of aliens ineligible for visas or admission.” § 1182(a). Because the provision applies only to noncitizens seeking admission, it is only natural that the clause uses the present tense to describe when such a noncitizen “is inadmissible.” By contrast, the stop-time rule, under the Government’s and Court’s reading, purports to apply to noncitizens not seeking admission at all—and who therefore could not possibly be adjudicated inadmissible.

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seeking formal admission. Noncitizens applying for adjustment of status must establish admissibility. §§ 1255(a), (l)(2). But that is because adjustment of status is an express proxy for admission: “Congress created the [process] to enable an alien physically present in the United States to become an LPR without incurring the expense and inconvenience of traveling abroad to obtain an immigrant visa” and then presumably demonstrating admissibility on return. DHS, U. S. Citizenship and Immigration Services Policy Manual, vol. 7, pt. A, ch. 1 (2020), <https://www.uscis.gov/policy-manual>. Far from a “ginned-up label,” *ante*, at 237, the term “constructive admission” expresses precisely how the INA conceives of adjustment of status: an admissions process that occurs inside the United States as opposed to outside of it.

Alternatively, the Government also relies on two narrow provisions of the INA applicable to “[s]pecial agricultural workers,” 8 U. S. C. § 1160(a)(3)(B)(ii), and “certain entrants before January 1, 1982,” § 1255a(b)(2)(B). These provisions, it argues, demonstrate that throughout the INA, inadmissibility is a status untethered to admission. But these provisions, too, refer to noncitizens seeking adjustment of status. § 1160(a)(1) (setting procedures for adjustment of status of certain noncitizens); § 1255a(a) (same).³ Even if the Government were correct that these statutes deem a noncitizen inadmissible outside of an application for admission, its argument would rise and fall on a few provisions within the expansive INA.⁴ In any event, neither of these provisions

³ Indeed, one of the provisions suggests that, outside the context in which a noncitizen seeks adjustment of status (and thus seeks constructive admission), a noncitizen’s status can be terminated “only upon a determination . . . that the alien is deportable.” § 1160(a)(3)(A).

⁴ The Government also notes that a noncitizen would be deportable were she inadmissible at entry (or during adjustment of status) but erroneously admitted (or allowed to adjust status). Brief for Respondent 18–19 (citing § 1227(a)(1)(A)). But this provision directly undermines the Government’s reading of the statute. Were inadmissibility a status untethered

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is similar in structure and purpose to the stop-time rule. Neither refers to grounds of inadmissibility and grounds of deportability in tandem. What is more, neither appears to confer or deny relief exclusively in removal proceedings—where the dichotomy between inadmissibility and deportability is most important.

By contrast, the Government concedes that the term “inadmissible” in the mandatory-detention statute—a provision structurally similar to the stop-time rule—applies only to noncitizens capable of being charged with inadmissibility. Brief for Respondent 30. That provision specifies, in relevant part, that the Government “shall take into custody any alien who—(A) is inadmissible by reason of having committed any offense covered in section 1182(a)(2)” or “(C) is deportable under section 1227(a)(2)(A)(i) . . . on the basis of an offense for which the alien has been sentence[d] to a term of imprisonment of at least 1 year.” § 1226(c)(1) (footnote omitted).

Although the term “inadmissible” in this context does not refer to an actual adjudication of inadmissibility, see *Demore*, 538 U.S., at 513, 531, the Government accepts that it must at least refer to a possible charge on a noncitizen seeking admission. Brief for Respondent 30. Otherwise, the statute would subject already-admitted noncitizens—even those who are not deportable for any criminal offense—to mandatory detention, simply because they occupy the “status” of inadmissibility. This provision’s structure is virtually the same as the stop-time rule: It refers to grounds of inadmissibility and grounds of deportability separately and applies to a noncitizen in removal proceedings.

Given the similar structure, the stop-time rule should be read the same as the mandatory-detention provision: to refer

to admission, a noncitizen inadmissible at the time of entry would always be inadmissible. But because a noncitizen who was already admitted cannot be adjudicated inadmissible, Congress made erroneous admission a ground of deportability, not inadmissibility.

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to adjudications that are possible rather than impossible. If a noncitizen seeking admission has committed a crime under § 1182(a)(2) and is convicted of or admits to the offense, that offense “renders” the noncitizen “inadmissible” because the noncitizen can be charged and found inadmissible based on that crime. But such an offense does not render a noncitizen inadmissible if, like Barton, he or she was admitted years earlier and does not seek readmission. For a noncitizen who has already been admitted, Congress carved out a separate category of offenses in both the stop-time rule and the mandatory-detention provision: here, those referred to in § 1182(a)(2) that render a noncitizen deportable under §§ 1227(a)(2) and (a)(4).

III

The Court reaches a different result only by contorting the statutory language and by breezily waving away applicable canons of construction. At various points the Court seems to ignore the rule’s second and third clauses entirely—clauses that, as mentioned above, distinguish between grounds of inadmissibility and grounds of deportability. The Court insists that the statute “operates like traditional criminal recidivist laws” because it precludes cancellation of removal for a noncitizen who “has committed an offense listed in § 1182(a)(2) during the initial seven years of residence.” *Ante*, at 225–226; see also *ante*, at 230, 231, n. 5, 240.

Had Congress intended for commission of a crime in § 1182(a)(2) alone to trigger the stop-time rule, it would have said so. In fact, it would have stopped at the rule’s first clause, which (without more) states the Court’s rule: that the time of continuous residence stops whenever a noncitizen “has committed an offense referred to in section 1182(a)(2) of this title.” § 1229b(d)(1).

But that reading ignores the rest of what Congress wrote. Congress specified that it is not enough for a noncitizen to commit a crime listed in § 1182(a)(2); that crime must also “rende[r] the alien inadmissible to the United States under

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section 1182(a)(2) of this title” or “removable from the United States under section 1227(a)(2) or 1227(a)(4) of this title.” § 1229b(d)(1). Those words have meaning—invoking the two-track structure of the INA and the distinction between grounds of inadmissibility and grounds of deportability—and the Court cannot simply will them out of existence.

Even when the Court finally discusses the second clause, “renders the alien inadmissible,” the Court raises more questions than it answers—and answers questions that it need not address at all. First, the Court claims, the clause makes clear that “cancellation of removal is precluded if a noncitizen *committed* a § 1182(a)(2) offense during the initial seven years of residence, even if (as in Barton’s case) the *conviction* occurred after the seven years elapsed.” *Ante*, at 232. Despite the emphasis the Court lays on this point, it is irrelevant to this case: Barton does not dispute that the stop-time rule is triggered by the date of commission of a crime rather than a later date of conviction. Brief for Petitioner 9, n. 4. The question in this case is whether certain offenses can possibly render Barton inadmissible when he does not seek admission and has already been admitted—regardless of whether one looks to the date of commission or the date of conviction of those offenses.⁵

Even if this question mattered and were properly before us, Congress could have made the same point—that the stop-time rule is triggered by commission of a crime—by omitting the second and third clauses entirely. It again could have written what the Court, at various points, seems to wish it had written: The stop-time rule is triggered whenever a noncitizen “has committed an offense referred to in section

⁵Courts have split over what event triggers the stop-time rule—commission of the offense or a second, later point at which the offense “render[s]” the noncitizen inadmissible. Brief for Momodoulamin Jobe et al. as *Amici Curiae* 12–13. Because this point about the trigger date is neither disputed here nor briefed by either party, the Court’s opinion should not be read to resolve a Circuit split that is not before this Court.

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1182(a)(2) of this title.” The second and third clauses—which refer to later events, when a noncitizen is actually “render[ed]” inadmissible or deportable—make the Court’s aside less plausible, not more.

The Court next insists that the second clause makes clear that the crime must “rende[r]” the noncitizen “inadmissible”—which, in the Court’s view, requires only that a noncitizen admit the crime or be convicted of it. *Ante*, at 233. But given the INA’s historic two-track structure, a noncitizen is not “render[ed]” inadmissible when convicted of an offense that cannot serve as a ground of removal at all. The Court also fails to clarify why, if conviction or admission alone renders any noncitizen inadmissible regardless of admission status, Congress chose to add a third clause referring to grounds of deportability.

Indeed, what does the Court do about the canon against surplusage? The Court does not dispute that its reading makes the entire third clause of the stop-time rule meaningless. It offers only two rejoinders: (1) that the reference to subsection (a)(4) in the third clause is superfluous under either party’s reading, and (2) that a bit of surplusage makes no difference in any event. *Ante*, at 238–239. To be sure, “[s]ometimes the better overall reading of the statute contains some redundancy.” *Rimini Street, Inc. v. Oracle USA, Inc.*, 586 U. S. 334, 346 (2019). But the Court relies on more than just “some redundancy.” It dismisses out of hand one of only three clauses in the stop-time rule—without regard for the clause’s pedigree or the core difference between deportability and inadmissibility.

It remains this Court’s “‘duty “to give effect, if possible, to every clause and word of a statute.”’” *Duncan v. Walker*, 533 U. S. 167, 174 (2001) (quoting *United States v. Menasche*, 348 U. S. 528, 538–539 (1955)). It must therefore be “‘reluctan[t] to treat statutory terms as surplusage’ in any setting,” 533 U. S., at 174 (quoting *Babbitt v. Sweet Home Chapter, Communities for Great Ore.*, 515 U. S. 687,

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698 (1995))—especially in this context, where each word could dictate categorical ineligibility for relief from removal. It also does not matter that, as the Government points out, § 1227(a)(4) did not initially refer to any crimes cross-referenced in § 1182(a)(2). Brief for Respondent 32–33.⁶ Congress’ decision to make a noncitizen ineligible for cancellation based on a to-be-determined class of crimes is far different from excising and giving no meaning to an entire clause.

* * *

At bottom, the Court’s interpretation is at odds with the express words of the statute, with the statute’s overall structure, and with pertinent canons of statutory construction. It is also at odds with common sense. With virtually every other provision of the INA, Congress granted preferential treatment to lawfully admitted noncitizens—and most of all to LPRs like Barton. But because of the Court’s opinion today, noncitizens who were already admitted to the country are treated, for the purposes of the stop-time rule, identically to those who were not—despite Congress’ express references to inadmissibility and deportability. The result is that, under the Court’s interpretation, an immigration judge may not even consider whether Barton is entitled to cancellation of removal—because of an offense that Congress deemed too trivial to allow for Barton’s removal in the first instance. Because the Court’s opinion does no justice to the INA, let alone to longtime LPRs like Barton, I respectfully dissent.

⁶ Barton acknowledges that, even now, the reference to § 1227(a)(4) “does little or no work” for a separate reason: Noncitizens who are deportable under that subsection are ineligible for cancellation of removal. Brief for Petitioner 33, n. 7. But, according to Barton, there are scenarios in which the reference to § 1227(a)(4) nevertheless “‘may . . . not be a redundancy,’” *ibid.*, and perhaps for this reason, the Government does not focus on this argument in its brief.

Syllabus

GEORGIA ET AL. *v.* PUBLIC.RESOURCE.ORG, INC.CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE ELEVENTH CIRCUIT

No. 18–1150. Argued December 2, 2019—Decided April 27, 2020

The Copyright Act grants monopoly protection for “original works of authorship.” 17 U. S. C. § 102(a). Under the government edicts doctrine, officials empowered to speak with the force of law cannot be the authors of the works they create in the course of their official duties.

The State of Georgia has one official code—the Official Code of Georgia Annotated (OCGA). That Code includes the text of every Georgia statute currently in force, as well as a set of non-binding annotations that appear beneath each statutory provision. The annotations typically include summaries of judicial opinions construing each provision, summaries of pertinent opinions of the state attorney general, and a list of related law review articles and other reference materials. The OCGA is assembled by the Code Revision Commission, a state entity composed mostly of legislators, funded through legislative branch appropriations, and staffed by the Office of Legislative Counsel.

The annotations in the current OCGA were produced by Matthew Bender & Co., Inc., a division of the LexisNexis Group, pursuant to a work-for-hire agreement with the Commission. Under the agreement, Lexis drafts the annotations under the supervision of the Commission, which specifies what the annotations must include in exacting detail. The agreement also states that any copyright in the OCGA vests in the State of Georgia, acting through the Commission.

Respondent Public.Resource.Org (PRO), a nonprofit dedicated to facilitating public access to government records and legal materials, posted the OCGA online and distributed copies to various organizations and Georgia officials. After sending PRO several cease-and-desist letters, the Commission sued PRO for infringing its copyright in the OCGA annotations. PRO counterclaimed, seeking a declaratory judgment that the entire OCGA, including the annotations, fell in the public domain. The District Court sided with the Commission, holding that the annotations were eligible for copyright protection because they had not been enacted into law. The Eleventh Circuit reversed, rejecting the Commission’s copyright assertion under the government edicts doctrine.

Held: The OCGA annotations are ineligible for copyright protection. Pp. 263–276.

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(a) The government edicts doctrine developed from a trio of 19th-century cases. In *Wheaton v. Peters*, 8 Pet. 591, the Court held that no reporter can have a copyright in the Court's opinions and that the Justices cannot confer such a right on any reporter. In *Banks v. Manchester*, 128 U.S. 244, the Court held that judges could not assert copyright in "whatever work they perform in their capacity as judges"—be it "the opinion or decision, the statement of the case and the syllabus or the head note." *Id.*, at 253. Finally, in *Callaghan v. Myers*, 128 U.S. 617, the Court reiterated that an official reporter cannot hold a copyright interest in opinions created by judges. But, confronting an issue not addressed in *Wheaton* or *Banks*, the Court upheld the reporter's copyright interest in several explanatory materials that the reporter had created himself because they came from an author who had no authority to speak with the force of law.

The animating principle behind the government edicts doctrine is that no one can own the law. The doctrine gives effect to that principle in the copyright context through construction of the statutory term "author." For purposes of the Copyright Act, judges cannot be the "author[s]" of "whatever work they perform in their capacity" as lawmakers. *Banks*, 128 U.S., at 253. Because legislators, like judges, have the authority to make law, it follows that they, too, cannot be "authors." And, as with judges, the doctrine applies to whatever work legislators perform in their capacity as legislators, including explanatory and procedural materials they create in the discharge of their legislative duties. Pp. 263–266.

(b) Applying that framework, Georgia's annotations are not copyrightable. First, the author of the annotations qualifies as a legislator. Under the Copyright Act, the sole "author" of the annotations is the Commission, 17 U.S.C. § 201(b), which functions as an arm of the Georgia Legislature in producing the annotations. Second, the Commission creates the annotations in the discharge of its legislative duties. Pp. 267–269.

(c) Georgia argues that excluding the OCGA annotations from copyright protection conflicts with the text of the Copyright Act. First, it notes that § 101 lists "annotations" among the kinds of works eligible for copyright protection. That provision, however, refers only to "annotations . . . which . . . represent an original work of *authorship*." (Emphasis added.) Georgia's annotations do not fit that description because they are prepared by a legislative body that cannot be deemed the "author" of the works it creates in its official capacity. Second, Georgia draws a negative inference from the fact that the Act excludes

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from copyright protection works prepared by Federal Government officials, without establishing a similar rule for State officials. §§ 101, 105. That rule, however, applies to all federal officials, regardless of the nature and scope of their duties. It does not suggest an intent to displace the much narrower government edicts doctrine with respect to the States.

Moving on from the text, Georgia invokes what it views as the official position of the Copyright Office, as reflected in the Compendium of U. S. Copyright Office Practices. The Compendium, however, is a non-binding administrative manual and is largely consistent with this Court's position. Georgia also appeals to copyright policy, but such requests should be addressed to Congress, not the courts.

Georgia attempts to frame the government edicts doctrine to focus exclusively on whether a particular work has the force of law. But that understanding cannot be squared with precedent—especially *Banks*. Moreover, Georgia's conception of the doctrine as distinguishing between different categories of content with different effects has less of a textual footing than the traditional formulation, which focuses on the identity of the author. Georgia's characterization of the OCGA annotations as non-binding and non-authoritative undersells the practical significance of the annotations to litigants and citizens. And its approach would logically permit States to hide all non-binding judicial and legislative work product—including dissents and legislative history—behind a paywall. Pp. 269–276.

906 F. 3d 1229, affirmed.

ROBERTS, C. J., delivered the opinion of the Court, in which SOTOMAYOR, KAGAN, GORSUCH, and KAVANAUGH, JJ., joined. THOMAS, J., filed a dissenting opinion, in which ALITO, J., joined, and in which BREYER, J., joined as to all but Part II–A and footnote 6, *post*, p. 276. GINSBURG, J., filed a dissenting opinion, in which BREYER, J., joined, *post*, p. 292.

Joshua S. Johnson argued the cause for petitioners. With him on the briefs were *Jeremy C. Marwell*, *Matthew X. Etchemendy*, *John P. Elwood*, *Anthony B. Askew*, *Warren J. Thomas*, and *Daniel R. Ortiz*.

Anthony A. Yang argued the cause for the United States as *amicus curiae* urging reversal. With him on the brief were *Solicitor General Francisco*, *Assistant Attorney General Hunt*, *Deputy Solicitor General Stewart*, *Daniel Tenny*,

Counsel

Dana Kaersvang, Regan A. Smith, Kevin R. Amer, Sarah T. Harris, and Thomas W. Krause.

Eric F. Citron argued the cause for respondent. With him on the brief were *Thomas C. Goldstein, Erica Oleszczuk Evans, and Elizabeth H. Rader*.*

*Briefs of *amici curiae* urging reversal were filed for the State of Arkansas et al. by *Leslie Rutledge*, Attorney General of Arkansas, *Nicholas J. Bronni*, Solicitor General, *Vincent M. Wagner*, Deputy Solicitor General, and *Dylan L. Jacobs* and *Asher Steinberg*, Assistant Solicitors General, and by the Attorneys General for their respective jurisdictions as follows: *Steve Marshall* of Alabama, *Kevin G. Clarkson* of Alaska, *Karl A. Racine* of the District of Columbia; *Lawrence G. Wasden* of Idaho, *Derek Schmidt* of Kansas, *Jim Hood* of Mississippi, *Douglas J. Peterson* of Nebraska, *Alan Wilson* of South Carolina, *Jason Ravensborg* of South Dakota, *Herbert H. Slatery III* of Tennessee, *Sean D. Reyes* of Utah, *Thomas J. Donovan, Jr.*, of Vermont, and *Mark R. Herring* of Virginia; for the Copyright Alliance by *Nancy E. Wolff*; for the International Code Council, Inc., et al. by *James Hamilton*, *J. Kevin Fee*, *Raechel Keay Kummer*, and *Michael E. Kenneally*; for Matthew Bender & Co., Inc., by *Misha Tseytlin*, *Michael D. Hobbs*, *John M. Bowler*, and *Austin D. Padgett*; and for the Software & Information Industry Association by *Andrew J. Pincus*.

Briefs of *amici curiae* urging affirmance were filed for the American Civil Liberties Union et al. by *David D. Cole*, *Esha Bhandari*, *Ben Wizner*, *Cecillia D. Wang*, *Sean Young*, and *Jason Schultz*; for the American Intellectual Property Association by *Brian D. Wassom* and *Sheldon H. Klein*; for the American Library Association et al. by *Jennifer M. Urban* and *Erik Stallman*; for the Caselaw Access Project by *Christopher Bavitz*; for the Center for Democracy and Technology et al. by *Marta F. Belcher*, *Lisa A. Hayes*, *Leslie M. Spencer*, and *Ilya Shapiro*; for Current and Former Government Officials by *Sarang Vijay Damle*; for the Electronic Privacy Information Center et al. by *Marc Rotenberg* and *Alan Butler*; for the Internet Association by *Joseph C. Gratz*; for Print Disability Advocates by *Jessica P. Weber* and *Brian Wolfman*; for the R Street Institute et al. by *Charles Duan*; for the Reporters Committee for Freedom of the Press et al. by *Bruce D. Brown*, *Kevin M. Goldberg*, *Bruce D. Collins*, *Marcia Hofmann*, *Barbara W. Wall*, *Kurt Wimmer*, *Marshall W. Anstandig*, *James Cregan*, *Tonda F. Rush*, *Mickey H. Osterreicher*, *Laura R. Handman*, *Thomas R. Burke*, *Bruce E. H. Johnson*, and *Bruce W. Sanford*; for the Tennessee Coalition for Open Government et al. by *G. S. Hans*; for Shyamkrishna Balganesh et al. by *Peter S. Menell, pro se*; for Brendan Keefe by *Paul Koster*; for Nina Mendelson et al. by *Allison*

Opinion of the Court

CHIEF JUSTICE ROBERTS delivered the opinion of the Court.

The Copyright Act grants potent, decades-long monopoly protection for “original works of authorship.” 17 U. S. C. § 102(a). The question in this case is whether that protection extends to the annotations contained in Georgia’s official annotated code.

We hold that it does not. Over a century ago, we recognized a limitation on copyright protection for certain government work product, rooted in the Copyright Act’s “authorship” requirement. Under what has been dubbed the government edicts doctrine, officials empowered to speak with the force of law cannot be the authors of—and therefore cannot copyright—the works they create in the course of their official duties.

We have previously applied that doctrine to hold that non-binding, explanatory legal materials are not copyrightable when created *by judges* who possess the authority to make and interpret the law. See *Banks v. Manchester*, 128 U. S. 244 (1888). We now recognize that the same logic applies to non-binding, explanatory legal materials created *by a legislative body* vested with the authority to make law. Because Georgia’s annotations are authored by an arm of the legislature in the course of its legislative duties, the government edicts doctrine puts them outside the reach of copyright protection.

M. Zieve, Adina H. Rosenbaum, and Ms. Mendelson, pro se; for 36 Computational Law Scholars by Michael A. Livermore, pro se; for 39 Law Students et al. by Jef Pearlman; and for 116 Law Librarians et al. by Kyle K. Courtney.

Briefs of *amici curiae* were filed for the American Society for Testing and Materials et al. by Donald B. Verrilli, Jr., Rachel G. Miller-Ziegler, Kelly M. Klaus, Anjan Choudhury, J. Kevin Fee, Jane Wise, and Clark Silcox; for the National Association of Home Builders of the United States by Amy C. Chai and Thomas J. Ward; and for Next-Generation Legal Research Platforms and Databases by Phillip R. Malone.

Opinion of the Court

I

A

The State of Georgia has one official code—the “Official Code of Georgia Annotated,” or OCGA. The first page of each volume of the OCGA boasts the State’s official seal and announces to readers that it is “Published Under Authority of the State.”

The OCGA includes the text of every Georgia statute currently in force, as well as various non-binding supplementary materials. At issue in this case is a set of annotations that appear beneath each statutory provision. The annotations generally include summaries of judicial decisions applying a given provision, summaries of any pertinent opinions of the state attorney general, and a list of related law review articles and similar reference materials. In addition, the annotations often include editor’s notes that provide information about the origins of the statutory text, such as whether it derives from a particular judicial decision or resembles an older provision that has been construed by Georgia courts. See, *e. g.*, OCGA §§ 51–1–1, 53–4–2 (2019).

The OCGA is assembled by a state entity called the Code Revision Commission. In 1977, the Georgia Legislature established the Commission to recodify Georgia law for the first time in decades. The Commission was (and remains) tasked with consolidating disparate bills into a single Code for reenactment by the legislature and contracting with a third party to produce the annotations. A majority of the Commission’s 15 members must be members of the Georgia Senate or House of Representatives. The Commission receives funding through appropriations “provided for the legislative branch of state government.” OCGA § 28–9–2(c) (2018). And it is staffed by the Office of Legislative Counsel, which is obligated by statute to provide services “for the legislative branch of government.” §§ 28–4–3(c)(4), 28–9–4. Under the Georgia Constitution, the Commission’s role in

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compiling the statutory text and accompanying annotations falls “within the sphere of legislative authority.” *Harrison Co. v. Code Revision Comm’n*, 244 Ga. 325, 330, 260 S. E. 2d 30, 34 (1979).

Each year, the Commission submits its proposed statutory text and accompanying annotations to the legislature for approval. The legislature then votes to do three things: (1) “enact[]” the “statutory portion of the codification of Georgia laws”; (2) “merge[]” the statutory portion “with [the] annotations”; and (3) “publish[]” the final merged product “by authority of the state” as “the ‘Official Code of Georgia Annotated.’” OCGA §1–1–1 (2019); see *Code Revision Comm’n v. Public.Resource.Org, Inc.*, 906 F. 3d 1229, 1245, 1255 (CA11 2018); Tr. of Oral Arg. 8.

The annotations in the current OCGA were prepared in the first instance by Matthew Bender & Co., Inc., a division of the LexisNexis Group, pursuant to a work-for-hire agreement with the Commission. The agreement between Lexis and the Commission states that any copyright in the OCGA vests exclusively in “the State of Georgia, acting through the Commission.” App. 567. Lexis and its army of researchers perform the lion’s share of the work in drafting the annotations, but the Commission supervises that work and specifies what the annotations must include in exacting detail. See 906 F. 3d, at 1243–1244; App. 269–278, 286–427 (Commission specifications). Under the agreement, Lexis enjoys the exclusive right to publish, distribute, and sell the OCGA. In exchange, Lexis has agreed to limit the price it may charge for the OCGA and to make an unannotated version of the statutory text available to the public online for free. A hard copy of the complete OCGA currently retails for \$412.00.

B

Public.Resource.Org (PRO) is a nonprofit organization that aims to facilitate public access to government records and legal materials. Without permission, PRO posted a digital

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version of the OCGA on various websites, where it could be downloaded by the public without charge. PRO also distributed copies of the OCGA to various organizations and Georgia officials.

In response, the Commission sent PRO several cease-and-desist letters asserting that PRO's actions constituted unlawful copyright infringement. When PRO refused to halt its distribution activities, the Commission sued PRO on behalf of the Georgia Legislature and the State of Georgia for copyright infringement. The Commission limited its assertion of copyright to the annotations described above; it did not claim copyright in the statutory text or numbering. PRO counterclaimed, seeking a declaratory judgment that the entire OCGA, including the annotations, fell in the public domain.

The District Court sided with the Commission. The court acknowledged that the annotations in the OCGA presented "an unusual case because most official codes are not annotated and most annotated codes are not official." *Code Revision Comm'n v. Public.Resource.Org, Inc.*, 244 F. Supp. 3d 1350, 1356 (ND Ga. 2017). But, ultimately, the court concluded that the annotations were eligible for copyright protection because they were "not enacted into law" and lacked "the force of law." *Ibid.* In light of that conclusion, the court granted partial summary judgment to the Commission and entered a permanent injunction requiring PRO to cease its distribution activities and to remove the digital copies of the OCGA from the internet.

The Eleventh Circuit reversed. 906 F. 3d 1229. The court began by reviewing the three 19th-century cases in which we articulated the government edicts doctrine. See *Wheaton v. Peters*, 8 Pet. 591 (1834); *Banks v. Manchester*, 128 U. S. 244 (1888); *Callaghan v. Myers*, 128 U. S. 617 (1888). The court understood those cases to establish a "rule" based on an interpretation of the statutory term "author" that "works created by courts in the performance of their official duties did not belong to the judges" but instead fell "in the

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public domain.” 906 F. 3d, at 1239. In the court’s view, that rule “derive[s] from first principles about the nature of law in our democracy.” *Ibid.* In a democracy, the court reasoned, “the People” are “the constructive authors” of the law, and judges and legislators are merely “draftsmen . . . exercising delegated authority.” *Ibid.* The court therefore deemed the “ultimate inquiry” to be whether a work is “attributable to the constructive authorship of the People.” *Id.*, at 1242. The court identified three factors to guide that inquiry: “the identity of the public official who created the work; the nature of the work; and the process by which the work was produced.” *Id.*, at 1254. The court found that each of those factors cut in favor of treating the OCGA annotations as government edicts authored by the People. It therefore rejected the Commission’s assertion of copyright, vacated the injunction against PRO, and directed that judgment be entered for PRO.

We granted certiorari. 588 U. S. 904 (2019).

II

We hold that the annotations in Georgia’s Official Code are ineligible for copyright protection, though for reasons distinct from those relied on by the Court of Appeals. A careful examination of our government edicts precedents reveals a straightforward rule based on the identity of the author. Under the government edicts doctrine, judges—and, we now confirm, legislators—may not be considered the “authors” of the works they produce in the course of their official duties as judges and legislators. That rule applies regardless of whether a given material carries the force of law. And it applies to the annotations here because they are authored by an arm of the legislature in the course of its official duties.

A

We begin with precedent. The government edicts doctrine traces back to a trio of cases decided in the 19th cen-

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ture. In this Court's first copyright case, *Wheaton v. Peters*, 8 Pet. 591 (1834), the Court's third Reporter of Decisions, Wheaton, sued the fourth, Peters, unsuccessfully asserting a copyright interest in the Justices' opinions. *Id.*, at 617 (argument). In Wheaton's view, the opinions "must have belonged to some one" because "they were new, original," and much more "elaborate" than law or custom required. *Id.*, at 615. Wheaton argued that the Justices were the authors and had assigned their ownership interests to him through a tacit "gift." *Id.*, at 614. The Court unanimously rejected that argument, concluding that "no reporter has or can have any copyright in the written opinions delivered by this court" and that "the judges thereof cannot confer on any reporter any such right." *Id.*, at 668 (opinion).

That conclusion apparently seemed too obvious to adorn with further explanation, but the Court provided one a half century later in *Banks v. Manchester*, 128 U. S. 244 (1888). That case concerned whether Wheaton's state-court counterpart, the official reporter of the Ohio Supreme Court, held a copyright in the judges' opinions and several non-binding explanatory materials prepared by the judges. *Id.*, at 249–251. The Court concluded that he did not, explaining that "the judge who, in his judicial capacity, prepares the opinion or decision, the statement of the case and the syllabus or head note" cannot "be regarded as their author or their proprietor, in the sense of [the Copyright Act]." *Id.*, at 253. Pursuant to "a judicial *consensus*" dating back to *Wheaton*, judges could not assert copyright in "whatever work they perform in their capacity as judges." *Banks*, 128 U. S., at 253 (emphasis in original). Rather, "[t]he whole work done by the judges constitutes the authentic exposition and interpretation of the law, which, binding every citizen, is free for publication to all." *Ibid.* (citing *Nash v. Lathrop*, 142 Mass. 29, 6 N. E. 559 (1886)).

In a companion case decided later that Term, *Callaghan v. Myers*, 128 U. S. 617 (1888), the Court identified an important limiting principle. As in *Wheaton* and *Banks*, the Court re-